GILA AND SALT RIVER MERIDIAN

T. 30 N., R. 2 E.,
Sec. 11, E½SE¼NE¼NE¼ and NE¼SE¼NE¼;
Sec. 12, NW¼NE¼NW¼, NE¼NW¼NW¼, S½NW¼NW¼, NW¼SW¼NW¼, and NW¼NE¼SW¼NW¼.

The areas described aggregate 67.5 acres.

This order shall not become effective to change the status of the above-described lands in section 11 which are within the Kaibab National Forest until 10:00 a. m. on December 23, 1947, whereupon the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to such application, petition, location or selection as may be authorized by the public-land laws in accordance with the provisions of 43 CFR 295.8 (Circ. 324. May 22, 1914, 43 L. D. 254), to the extent that these regulations are applicable.

The above-described lands in section 12 are within the boundaries of the Grand Canyon National Park as revised by the act of February 25, 1927, 44 Stat. 1238 (U. S. C. Title 16, sec. 221a).

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

OCTOBER 21, 1947.

[F. R. Doc. 47-9557; Filed, Oct. 27, 1947; 8:46 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Docket No. 8308]

PART 8—SHIP RADIO SERVICE

SHIP RADAR INSTALLATIONS

In the matter of amendment of Part 8 of the Commission's rules and regulations governing ship service to establish the ship radar station as a new class of station within the ship service.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 16th day of October 1947;

The Commission having under consideration the matter of the amendment of Part 8 of the Commission's rules governing ship service in order to establish ship radar stations as a new class of station within the ship service; and

It appearing, that on April 30, 1947, general notice of proposed rule making with respect thereto was published in accordance with section 4 (a) of the Administrative Procedure Act; and

It further appearing, that comments and recommendations pertaining to the proposed rule changes were filed with, and carefully considered by, the Commission; and

It further appearing, that some of the recommendations were adopted and others were rejected; and

It further appearing, that in order to reduce the frequency of renewals, it is desirable to establish a four year term for ship radar station licenses, but for purposes of efficient administration it is desirable that the term of new ship radar station licenses shall be a flexible one of from one to five years as the Commission shall in each case determine; and

It further appearing, that sufficient information is available to demonstrate the effectiveness of ship radar installations as an aid to the promotion of safety of life at sea and warrant the licensing of ship radar stations on a regular basis rather than only in the Experimental Service as has been done heretofore, thus enabling users of shipboard radar to plan such use on a permanent rather than a tentative basis;

It further appearing, That public interest, convenience and necessity would be served by adoption of the proposed rules as set forth in the Appendix attached hereto:

It is ordered, That effective December 10, 1947, Part 8 of the Commission's rules and regulations governing Ship Service, be amended as set forth below.

(Sec. 303 (b), (c), (e), (f), (j), 48 Stat. 1082, 303 (r), 50 Stat. 191; 47 U. S. C. 303 (b), (c), (e), (f), (j), (r))

FEDERAL COMMUNICATIONS COMMMISSION,
[SEAL] T. J. SLOWIE,
Secretary.

1. Sections 8.20 and 8.21, respectively, are amended by inserting a footnote designated as "2a" after the term "maritime mobile service" in § 8.20 and after the term "ship service" in § 8.21, which footnote shall read as follows:

[2a] The term does not apply to the use of radar installations on board ship except where radar is specifically mentioned.

2. The following new rules governing Ship Radar Stations are added, reading as follows:

SHIP RADAR INSTALLATIONS

§ 8.195 *Requirements for ship radar installations.* In addition to other applicable rules and regulations ship radar installations shall be governed by the following:

(a) *Definition.* The term "ship radar installation" or "ship radar station" as used herein means a radio station located on board ship licensed for the transmission of energy by radio for the purpose of automatically detecting land and other objects through the reception of the effects of such transmission, with a determination of their direction and distance.

(b) *Application for ship radar station licenses.* Applications for ship radar station licenses shall be made in accordance with the provisions of Part 1 of the Commission's rules and regulations.

(c) *Term of ship radar station licenses.* Except as provided in paragraph (m) (2) of this section:

(1) In order to achieve the scheduling of renewal applications, new ship radar station licenses will be issued to expire at 3 a. m., e. s. t., on a date one to five years from the date on which they become effective, as the Commission shall determine in each case.

(2) Ship radar station licenses normally will be renewed upon proper application, to expire at 3 a. m., e. s. t., on a date four years from the effective date from renewal.

(d) *Posting of ship radar station license.* The ship radar station license shall be posted in a conspicuous place at the principal radar operating position.

(e) *Station identification.* Section 2.65 requiring station identification by call letters shall not apply to ship radar stations. For administrative purposes, the call letters assigned to a ship radar station normally will be the same as the ship station call letters or ship signal letters.

(f) *Authorized emission for radar transmitters.* Any transmitter of a ship radar station which operates within a frequency band allocated in paragraph (g) of this section shall use special (pulsed) type of emission only.[7a]

(g) *Allocation of frequencies for ship radar stations.* The following frequency bands are allocated for use by ship radar stations: [7b]

3000 to 3246 Mc.
5460 to 5650 Mc.
9320 to 9500 Mc.

(h) *Frequency tolerance.* The frequency at which maximum emission occurs shall be within an authorized band, and any energy emitted outside the authorized band shall be attenuated to the extent necessary to prevent interference. Until such time as a determination is made as to the degree of attenuation which will be required, any radar transmitter which causes interference to other radio stations may, in the discretion of the Commission, be required to cease operation until appropriate remedial measures have been taken.

(i) *Frequency measurements.* The licensee of a ship radar station shall take the necessary measures to insure that the transmitter operates within the tolerance limits specified in paragraph (h) of this section.

(j) *Name plate on radar installation.* Each ship radar station installation the manufacture of which was completed on or after December 10, 1947, shall be furnished with a durable name plate with the manufacturer's name, transmitter model number, and month and year of completion of manufacture permanently inscribed thereon. Such name plate shall be affixed to the indicator housing at the principal radar operating position or to some other component of the radar installation which is readily accessible for inspection.

(k) *External adjustments.* Radar transmitters which have means available for external adjustments, the manipulation of which may cause operation not in accordance with paragraph (h) of

[7a] For the purpose of this part of the rules, the term "special (pulsed) type of emission" means radio frequency energy which is emitted in the form of short bursts of energy repeated at regular intervals, the duration of each burst being much shorter than the interval between bursts.

[7b] The associated transmitting frequencies of radar beacons (racons) are, respectively, as follows: 3256, 5450, and 9310 megacycles.

this section, will not be licensed in the ship service.

(l) *Design and construction.* The design and construction of radar equipment intended for licensing in ship service shall be such that, when properly installed, its use will produce no interference to the radio communication service of any ship.

(m) *Type approval of radar equipment.* (1) To determine the acceptability of radar equipment for licensing in the ship service, such equipment will be examined by duly authorized representatives of the Commission for compliance with the provisions of paragraphs (f), (g), (h), (j), (k) and (l) of this section, and if found in compliance therewith, appropriate type approval will be issued.

(2) Shipboard radar equipment installed on or before December 10, 1947, which does not meet the requirements specified in this section may be considered by the Commission for licensing in the ship service. However, a license issued in this case shall be valid for a period not beyond July 1, 1950 and under such other terms and conditions as the Commission may deem appropriate to assure non-interference to other services.

(3) After July 1, 1950, no shipboard radar equipment will be considered for licensing in the ship service unless such equipment has been given type approval as provided in this section.

(n) *Reports.* Until the Commission shall otherwise provide, the licensee, by such arrangement as may be necessary with the ship master, operating agency or ship owner, shall upon request of the Commission be responsible for the submission of such reports as may be required to show the value and performance of a ship radar station.[11e]

[F. R. Doc. 47-9586; Filed, Oct. 27, 1947; 8:47 a. m.]

TITLE 48—TERRITORIES AND INSULAR POSSESSIONS

Chapter II—Puerto Rico Reconstruction Administration, Department of the Interior

PART 200—ESTABLISHMENT, GENERAL ADMINISTRATION AND FUNCTIONS

APPOINTMENT OF JAMES P. DAVIS AS ADMINISTRATOR

CROSS REFERENCE: For appointment of James P. Davis, Director, Division of Territories and Island Possessions, Department of the Interior, as Administrator of the Puerto Rico Reconstruction Administration (§ 200.2), see Executive Order 9901 under Title 3, *supra*.

[11e] For assistance in preparing these reports, daily records should be kept showing at least the following:

(a) Number of hours of use while the ship is in operation,

(b) Number of service failures, and duration, nature, and cause of each failure.

(c) Performance under abnormal weather conditions.

(d) Unusual incidents, including, among others, cases in which radar may have aided or hindered safe operation of a vessel.

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter I—Interstate Commerce Commission

Subchapter A—General Rules and Regulations

[S. O. 784, Amdt. 1]

PART 95—CAR SERVICE

BOX CARS OF CANADIAN RAILROAD OWNERSHIP

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 22d day of October, A. D. 1947.

Upon further consideration of Service Order No. 784 (12 F. R. 6954), and good cause appearing therefor; it is ordered, that:

Section 95.784 *Return of box cars of Canadian ownership*, of Service Order No. 784, be, and it is hereby, amended by adding the following paragraphs (e) and (f) thereto:

(e) *Special and general permits.* The provisions of this section shall be subject to any special or general permits issued to meet exceptional circumstances.

(f) *Appointment of permit agent.* A. H. Gass, Director, Railway Transport Department, Office of Defense Transportation, Room 5133 ICC Building, Phone: Republic 7500, Ext. 3531, is hereby designated and appointed as an agent of this Commission and authorized to issue permits in accordance with paragraph (e) of this section.

It is further ordered, that this amendment shall become effective at 12:01 a. m., October 23, 1947; that a copy of this order and direction be served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

(40 Stat. 101, sec. 402, 418, 41 Stat. 476, 485, sec. 4, 10; 54 Stat. 901, 912; 49 U. S. C. 1 (10)-(17), 15 (4))

By the Commission, Division 3.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 47-9583; Filed, Oct. 27, 1947; 8:47 a. m.]

Subchapter B—Carriers by Motor Vehicle

PART 181—UNIFORM SYSTEM OF ACCOUNTS FOR CLASS I COMMON AND CONTRACT CARRIERS OF PASSENGERS

MODIFICATIONS OF UNIFORM SYSTEM OF ACCOUNTS FOR CLASS I COMMON AND CONTRACT MOTOR CARRIERS OF PASSENGERS, ISSUE OF 1937, EFFECTIVE JANUARY 1, 1938

At a session of the Interstate Commerce Commission, Division 1, held at its office in Washington, D. C., on the 15th day of December A. D. 1943.

The Uniform System of Accounts for Class I Common and Contract Motor Carriers of Passengers, issue of 1937 (Part 181 of Title 49, Code of Federal Regulations), and the order of the Commission dated November 29, 1937, prescribing said system being under consideration by the Division, pursuant to the authority of section 220 of the Interstate Commerce Act, and the Division having found need for modifications and amendments therein: *It is ordered*, That

The following modifications of the Uniform System of Accounts, prescribed and approved by order of November 29, 1937 (49 CFR 181), are hereby approved and adopted:

1. The second and third ordering paragraphs of § 181.00–1, *Order of the Commission*, (b) and (c), are hereby modified and superseded to the extent that the following is substituted therefor:

§ 181.00–1 *Order of the Commission.* * * *

(b) That each Class I common and contract motor carrier of passengers, as such carriers are classified in the Uniform System of Accounts for Class I Common and Contract Motor Carriers of Passengers, as hereinafter modified and amended and each receiver, trustee, executor, administrator, or assignee of any such carrier, is hereby required to comply with said amended system of accounts; and said amended system of accounts is prescribed for use in the keeping and recording of their accounts by such Class I common and contract motor carriers of passengers; and each such carrier and each and every receiver, trustee, executor, administrator, or assignee of such motor carrier is required to keep all accounts in conformity therewith.

2. Cancel paragraph (c) of § 181.02–1 *Classification of carriers*, and substitute the following in lieu thereof:

§ 181.02–1 *Classification of carriers.* * * *

(c) The class to which any carrier belongs shall be determined by the average of its annual gross operating revenues derived from motor carrier operations for the three calendar years immediately preceding the effective date of this system of accounts. If, at the end of any calendar year following the effective date of this system of accounts, the average of its annual gross operating revenues from motor carrier operations for the three preceding years is greater than the maximum or less than the minimum for the class in which the carrier has been grouped, it shall automatically be grouped in the higher or lower class in which it falls because of such increased or decreased average annual gross operating revenues. Any carrier which begins new operations or extends its existing operations subsequent to the effective date of this system of accounts may be classified in accordance with a reasonable estimate of its prospective annual gross operating revenues.

3. Delete last sentence in paragraph (a), § 181.1180, *Material and supplies*, and substitute the following in lieu thereof: